

DECODED EXPLAINED

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What does the law say about CEC removal

What does the law say about CEC's removal?

How are the CEC and ECs appointed? Why did the Supreme Court intervene in appointments?
What did the Anoop Baranwal judgment prescribe? Who was on the appointment panel prescribed by the Supreme Court? What protection does a CEC have against removal?

Rizmi Lia M.

The story so far:

The Chief Election Commissioner of India has come under scrutiny following a recent expose by *The Indian Express*. On September 23, Opposition parties sought the removal of Chief Election Commissioner (CEC) Gyanesh Kumar after the expose claimed that two of the three Election Commissioners, Sukhbir Singh Sandhu and Vivek Joshi, had formally recorded objections at least 14 times over the last 10 months.

How are the CEC and ECs appointed?

Article 324 of the Constitution vests the "superintendence, direction and control" of elections in the Election Commission of India (ECI). Article 324(2) provides that the President appoints the CEC and other Election Commissioners, subject to any law made by Parliament.

For several decades, Parliament had not enacted a law laying down the procedure for these appointments. This led to a challenge before the Supreme Court on the question of how the independence of the ECI could be protected when its members were appointed by the executive. In March 2023, a five-judge Constitution Bench of the Supreme Court

Article 324(5) states that the CEC can be removed from office 'in like manner and on the like grounds as a Judge of the Supreme Court'

delivered its judgment in *Anoop Baranwal v. Union of India*.

What was the Anoop Baranwal case?

In January 2015, Anoop Baranwal filed a public interest litigation (PIL) on the ground that the system for appointing members of the ECI was unconstitutional. At the time, the executive enjoyed the power to make appointments. The PIL contended that the ECI's independence has degraded over time. It pleaded for the court to issue directions to set up an independent, collegium-like system for ECI appointments.

The Constitution Bench held that until Parliament made a law under Article 324(2), appointments to the Election Commission would be made on the recommendation of a three-member committee comprising the Prime Minister, the Leader of the Opposition in the Lok Sabha and the Chief Justice of India. The court said the arrangement would operate only until Parliament enacted a law on the subject.

What happened after the judgment?

Parliament enacted the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023, which came into force in January 2024.

The appointment mechanism differed from the one prescribed by the Supreme Court in *Anoop Baranwal*. Under the 2023 Act, the Selection Committee consists of the Prime Minister, the Leader of the Opposition in the Lok Sabha, and a Union Cabinet Minister nominated by the Prime Minister.

The President appoints the CEC and ECs on the recommendation of this committee.

The Act also provides for a Search Committee headed by the Union Law Minister, which prepares a panel of five persons for consideration by the Selection Committee.

The 2023 law has been challenged before the Supreme Court. One of the questions before the court is whether replacing the CJI with a Union Cabinet Minister is constitutionally valid. On September 23, a Division Bench of Justices Dipankar Datta and S.C. Sharma delivered a 'split' verdict on the Union government's plea

seeking a larger bench reference of the challenges against the 2023 Act. While Justice Datta did not find a reference to a Constitution Bench necessary, Justice Sharma held in favour of sending the case to a Constitution Bench, stating that several questions of substantial importance were at stake.

How can a CEC be removed?

The Constitution gives the CEC a high degree of protection against removal. Article 324(5) states that the CEC can be removed from office "in like manner and on the like grounds as a Judge of the Supreme Court." This means that the CEC can be removed only on the grounds of proved misbehaviour or incapacity and through the parliamentary procedure prescribed for the removal of a Supreme Court judge.

A removal motion has to be passed by the required special majority in both Houses of Parliament. Only after Parliament passes the motion can the President issue an order removing the CEC. The procedure is set out in the Judges (Inquiry) Act, 1968.

The protection available to the other Election Commissioners is different. Under Article 324(5), an Election Commissioner or Regional Commissioner cannot be removed from office except on the recommendation of the CEC.

Can a CEC be arrested?

This question has come into focus because of calls for the arrest of the incumbent CEC.

The relevant provision is Section 16 of the 2023 Act. It provides protection to a person who is or was a CEC or Election Commissioner from civil or criminal proceedings in court for an act, thing or word done or spoken while, or in the course of, acting or purporting to act in the discharge of official duty or function.

The provision is significant because it extends protection even to a person who "is or was" a CEC or Election Commissioner.

However, Section 16 does not expressly state that a CEC cannot be arrested. It says that no court shall entertain or continue civil or criminal proceedings in relation to conduct covered by the provision. The section does not use the words "arrest", "investigation" or "police custody". It therefore cannot simply be described as a blanket immunity from arrest.

The protection is also linked to acts done while, or in the course of, acting or purporting to act in the discharge of official duty or function.



Rising dissent: Youth Congress workers protesting against CEC Gyanesh Kumar, demanding his resignation, in New Delhi on Friday. SUSHIL KUMAR VERMA

What does the law say about CEC removal

History

- Established on 25th January, 1950 (National Voters Day)
- From 1950 : Single Member ECI was set up : Sukumar Sen was the first ECI
- 1989 : We shifted to multi member ECI then reverted back to 1990 as single member ECI
- 1991 : We shifted to permanent 3 member body : CEC + 2 EC
- CEC and ECs are appointed by President for a period of 6 years
- Article 324 : Superintendence, direction and control of Elections : Reservoir of Powers, Plenary powers are available
- CEC has security of tenure and can be removed only like a judge of SC
- EC can be removed based on recommendation of CEC

Achievements

- EVM was introduced first time in 1982
- Vigil APP : Report violation of MCC
- NOTA
- Postal Ballots
- SVEEP Programme : Systematic Voters' Education and Electoral Participation

What does the law say about CEC removal

Issues

- Allegation of bias against ECI
- Appointment related issues
 - Anoop Baranwal vs UOI, 2023 : Collegium consisting of PM, LoO and CJI
 - Chief Election and other ECs Act, 2023 : PM, Cabinet Minister and LoO : This was challenged and a 2 judge bench gave a split verdict
- Removal of EC not same as CEC
- EC's expenses are not charged in nature
- Lack of independent secretariat

Dignity in Death: Debate Over 'Humane' Execution

Consider the following statements:

1. The Election Commission of India is a five-member body.
2. Union Ministry of Home Affairs decides the election schedule for the conduct of both general elections and bye-elections.
3. Election Commission resolves the disputes relating to splits/mergers of recognised political parties.

Which of the statements given above is/are correct?

This question was previously asked in

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1. 1 and 2 only

2. 2 only

3. 2 and 3 only

4. 3 only

AI's energy needs grow, Google takes the data centre race to outer space

As AI's energy needs grow, Google takes the data centre race to outer space

Kate Conger & Cade Metz
San Francisco, September 26

At a lab in San Francisco last month, a team of technicians in protective suits and hairnets poked, prodded and inspected a refrigerator-size satellite commissioned by Google.

First, they examined the satellite's solar panels, which would unfurl in space and face the sun. The satellite was then placed on a table and shaken rapidly in a vibration test, to see whether the chips inside would be damaged or the machine would come apart during a journey into space. The technicians painstakingly painted a small line over each screw to

help indicate any loosening during the shaking.

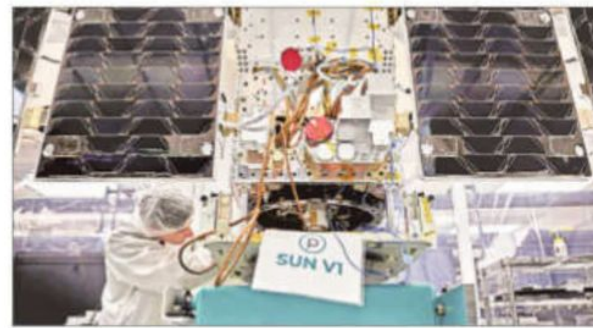
The satellite passed the vibration test, with its screws staying put and the chips remaining intact. James Manyika, Google's senior vice president for research, called the results "great," but he said he still wondered what would happen when the satellite went to space.

The work was part of an ambitious effort from Google called Project Suncatcher, which aims to put artificial intelligence data centers into space and to harness the sun's energy to power them. On October 1, the satellite from the San Francisco lab — which Google has named MVP — is set to become the first step toward

that goal by a major tech company. It will be loaded onto a SpaceX Falcon 9 rocket at the Vandenberg Space Force Base near Santa Barbara, California, and then launched into orbit.

Google provided *The New York Times* with the first inside look at the project, which seemed like a science-fiction dream just a year ago.

Elon Musk, Jeff Bezos, Sam Altman and others have pledged support for orbital data centers, but the idea faces many challenges, including withstanding radiation in space and the costs of getting machines beyond the atmosphere. Yet as data centers grapple with terrestrial opposition and physical li-



The satellite's solar panels will unfurl once it is in orbit, collecting energy to power Google's AI chips. NYT

mits, having computing facilities float above Earth has become increasingly attractive.

To be clear, Google is not

sending up a full data center — only an experimental precursor to one. MVP contains four specialized computer chips

called "tensor processing units," which have the computing power of one server in a data center. The satellite's solar panels will supply only about one kilowatt of power — roughly the amount needed to run a hair dryer — to the chips.

But that will be enough for Google to test its hardware against the harsh conditions of space. The satellite will answer simple AI queries and operate for a year, though it is set to circle Earth for up to six years. Eventually, it is expected to succumb to Earth's gravitational pull and burn up as it descends through the atmosphere.

Manyika said Google's expectations for the satellite were

tempered. "We don't expect, to be perfectly frank, that we'll have anything usefully operational in the next few years," he said, comparing the mission to the company's early efforts to build driverless cars. "Remember how Google was researching for like 15 years, before anything showed up? I think this is going to look like that."

Expanding from one satellite to a vast network of them that operates like a giant data center will take years and enormous funds, said Brandon Lucia, a professor of electrical and computer engineering at Carnegie Mellon University.

"If you do this on a large scale, there are additional en-

gineering problems," he said. "That is uncharted waters."

Project Suncatcher was the brainchild of Blaise Agüera y Arcas, 51, a Google vice president and AI researcher who leads a team studying intelligence. About three years ago, he attended a gathering of entrepreneurs and AI researchers where the main topic was the escalating energy needs of AI systems. Agüera y Arcas left the event convinced that data centers needed to move to space to harness solar power.

The idea "has been on my mind since I was kid," he said. "There are longstanding ideas in science fiction about using stars for computation." NYT

Dignity in Death: Debate Over 'Humane' Execution

- Google has announced Project Suncatcher, a long-term research initiative to test solar-powered data centres in space, with the first experimental launches planned for 2027.
- The project aims to test solar-powered data centres in space by deploying small computing racks on satellites, with Google planning to launch two prototype satellites by early 2027 as part of a learning mission in partnership with Planet Labs, an Earth imaging company.
- Satellite is called MVP
- It will rely on Tensor Processing Units (TPUs), Google's patented custom chips designed for high-volume, low-precision Artificial Intelligence (AI) processing, and use laser-based optical links to interconnect satellites into a constellation capable of data centre-level computation.

What is Karnataka's objection to the ESA

What is Karnataka's objection to the ESA?

What did the Karnataka Legislature decide on September 22? Why has the State repeatedly rejected the ESA draft? What did the Kasturirangan Committee recommend? How much of the Western Ghats was proposed as ESA? What has Karnataka proposed as the way forward?

Sharath S. Srivatsa

The story so far:

In September 22, the Karnataka Legislature unanimously passed a resolution rejecting the Kasturirangan Committee report on the Western Ghats in its current form. The resolution was in response to the seventh draft, published on July 27 by the Ministry of Environment, Ecology and Climate Change to declare parts of the Western Ghats as an Ecologically Sensitive Area (ESA). The draft gave the State government a 60-day window to file its objections.

This was the seventh instance of the Karnataka government rejecting the draft, which was first published in 2014. Successive governments have acknowledged the Western Ghats as an ecologically sensitive region, but have highlighted the ESA's impact on lives and livelihoods. There have been widespread protests over fears of loss of livelihood, as well as public consultations in the Malnad region. Of the six Western Ghats States, Karnataka has the largest area to be notified as an ESA, spread across 10 districts.

What is the report?

Eminent space scientist K. Kasturirangan chaired the High Level Working Group (HLWG), which was tasked with reviewing the earlier Western Ghats Ecology Expert Panel (WGEEP), headed by Prof. Madhav Gadgil, and recommending measures to protect the fragile Western Ghats, recognised by UNESCO as one of the world's ecological hotspots. The WGEEP submitted its report in 2011. Set up in 2012, the HLWG submitted its recommendations in 2013. Of the 1.64 lakh square kilometres of the

Both Houses of Karnataka Legislature passed a unanimous resolution seeking one year to conduct a physical survey of the area

Western Ghats, it recommended declaring 59,940 sq. km, covering 4,156 villages across Kerala, Karnataka, Tamil Nadu, Goa, Maharashtra and Gujarat, as ESA.

Karnataka has the largest area recommended under the ESA and the highest number of villages among the six States. About 41% of the total Western Ghats area has been identified as natural landscape, of which 37%, or about 59,940 sq. km, is biologically rich, has low fragmentation and low population density, and contains protected areas, World Heritage Sites, and tiger and elephant corridors. The report identified 20,668 sq. km across 1,576 villages in Karnataka, 17,340 sq. km across 2,159 villages in Maharashtra, 13,108 sq. km across 123 villages in Kerala, 6,914 sq. km across 135 villages in Tamil Nadu, 449 sq. km in 64 villages in Gujarat and 1,461 sq. km in 99 villages in Goa.

Currently, the area sought to be notified is 56,825 sq. km, mainly after Kerala undertook a ground survey and brought down its area to 9,993 sq. km. Subsequently, the number of villages in Maharashtra and Goa has increased, while the number has come down in Karnataka. As per the latest draft, a total of 4,402 villages will be part of the ESA. The actual area is sought to be finalised based on the recommendations of the State governments, the views of stakeholders, and the ESA Expert Committee.

What are the key recommendations?

The report recommends a total ban on certain activities and regulation of others. Banned activities include mining, quarrying, sand extraction, setting up red-category industries, thermal power plants, and construction of buildings beyond 20,000 square metres. It has prohibited township and area development projects. It has subjected infrastructure and development projects to environmental clearances and allowed hydroelectricity projects with certain conditions. All development projects located within 10 km of the Western Ghats ESA and requiring environmental clearance would be regulated under the provisions of the EIA Notification, 2006. It has also recommended financial arrangements and incentives for Green Growth in the Western Ghats, and suggested a decision-support and monitoring centre.

How does it differ from the Gadgil report?

There has been intense debate among experts, environmentalists and policymakers over the recommendations of the two reports. The two committees differed on the extent of the area to be declared ecologically sensitive and brought under protection. The Gadgil Committee

designated the entire Western Ghats as an ESA and estimated it to cover about 1.29 lakh sq. km, whereas the Kasturirangan Committee identified 1.64 lakh sq. km as the Western Ghats, of which about 60,000 sq. km were sought to be declared ESA. To initiate the conservation exercise, the Gadgil Committee recommended three categories of Ecologically Sensitive Zones – 1, 2 and 3 – with corresponding restrictions and bans on activities. The Kasturirangan Committee divided the Western Ghats into natural and cultural landscapes, with the latter being areas that have helped sustain lives but have lost their original character over centuries. The prohibition or restriction of activities is sought to be implemented in the ESA.

What is Karnataka's contention?

The State has argued that the ESA should cover only notified forest areas and other forest areas, and should not include plantation areas, agriculture and horticulture fields, or residential and public areas. It has pointed out that the areas were demarcated using satellite data and not through a joint survey. It has said there is no accurate bifurcation of revenue and forest land, and that there is no reference to provide alternatives for livelihood. It has argued that Bagair Hukum, forest rights, deemed forest, land grants, appeals, and legal cases should be considered. These issues, it has said, should be examined by an expert committee through a physical survey. It has also opposed the logic of including entire villages under the ESA because one-fifth of a village's area may be forest.

On the ground, genuine concerns have been expressed about possible restrictions on agriculture, housing and day-to-day activities by zealous forest officials. However, misinformation is also being spread in the name of the report. For example, though no restriction has been proposed on house building or renovation activities, ill-informed leaders at the local level are fuelling fears and anxiety that the measures would bring all such activities to a complete halt. There is also concern over a possible loss in the value of agricultural and plantation land due to restrictions, which could result in reduced investment in agriculture.

What has Karnataka done now?

Rejecting the report in its current form, both Houses of the Karnataka Legislature passed a unanimous resolution seeking one year to conduct a physical survey of the area and demanded that Karnataka's part should not be finalised till then. It has announced the setting up of a high-level committee headed by a retired judge and comprising all stakeholders to review the shortcomings of the Kasturirangan report and recommend modifications. Cutting across party lines, legislators urged the government to follow the 'Keralam model', under which such physical verification was conducted and submitted to the Centre.



Of the six Western Ghats States, Karnataka has the largest area to be notified as an ESA, spread across 10 districts. K. MURALI KUMAR

What is Karnataka's objection to the ESA

'Gadgil Committee Report' and 'Kasturirangan Committee Report', sometimes seen in the news, are related to

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1. Constitutional reforms
2. Ganga Action Plan
3. Linking of rivers
4. Protection of Western Ghats

The arts of Indus Valley Civilisation were free from religious influences both aesthetically and functionally. Analyse (10 marks)

Amazon and Pioneer Species : Monthly Session

Thank You